

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT NAME
HON. YOLANDA V. TORRES

Date: August 24, 2026

These are the Court's tentative rulings. They may become orders if the parties do not appear at the hearing. The Court might also make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 442, fn. 1)

If all counsel submit on the tentative ruling and do not desire oral argument please advise the courtroom clerk or courtroom attendant by calling (657) 622-5215. Please do not call the department unless all parties submit on the tentative ruling. If all sides submit on the tentative ruling and so advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under Cal.R. Ct. 3.132.

Court reporters: Official court reporters are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth in the Privately Retained Court Reporter Policy on the court's website at www.occourts.org.

1	Cseris Holdings, LLC. V. Quantum Cars Co 2025-01522163 Demurrer to Amended Complaint	Defendants Quantum Cars Co., and Lawrence Greaves' (erroneously sued as Lawrence Greves) Demurrer to Plaintiff's Second Amended Complaint is CONTINUED to October 19, 2026, at 1:45 p.m. in Department C15 as Defendants' counsel did not sufficiently meet and confer prior to filing the demurrer. The CMC set for the same date shall also be heard at 1:45 p.m. Before filing a demurrer, the moving party shall meet and confer with the opposing party in person, by telephone, or by video conference at least 5 days before a responsive pleading is due to see if a resolution can be reached on the objections to the pleading. (Code Civ. Pro., § 430.41, subds. (a), (a)(2).) Counsel for Defendants states he sent Plaintiff's counsel a letter setting forth alleged defects in the SAC on 6/24/26. (Kassan Decl., ¶ 4.) Counsel then participated in a phone call with Plaintiff's counsel who stated he would review the issues in the letter and consider a proposed stipulation. (Kassan Decl., ¶ 5.) Counsel for Defendants sent Plaintiff's counsel a redlined draft of a Third Amended Complaint and offered to stipulate to its filing. (Kassan
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		Decl., ¶ 5.) On 6/25/26, Plaintiff's counsel responded by email to state, "I disagree with your analysis. Please proceed with filing demurrer." (Kassan Decl., ¶ 6.) This does not satisfy the meet and confer requirement. The Court ORDERS the parties to meaningfully meet and confer in person, by telephone, or by video conference (email/letter is insufficient) concerning the issues raised in the demurrer. Defendants are to file and serve a declaration no later than nine (9) court days before the hearing date describing the parties' meet and confer efforts, and specifying what issues have been resolved, or remain for the Court to resolve. If no declaration is timely filed, the Court will construe this to mean that the issues have been resolved and will take the demurrer off-calendar. Moving party to give notice.
2	Schreiber v. Stewart 2024-01384707 Motion for Leave to File Amended Cross Complaint	Defendant/cross-complainant Nikki Jeannine Stewart's Motion for Leave to File First Amended Cross-Complaint is DENIED without prejudice. Legal standard "The court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading" (Code Civ. Proc., § 473, subd. (a)(1).) "Motions for leave to amend are directed to the sound discretion of the judge" (<i>Howard v. County of San Diego</i> (2010) 184 Cal.App.4th 1422, 1428 [citing Code Civ. Proc., § 473, subd. (a)(1).]) "[T]he court's discretion will usually be exercised liberally to permit amendment of the pleadings. The policy favoring amendment is so strong that it is a rare case in which denial of leave to amend can be justified." (<i>Ibid.</i>, [citations omitted].) California Rules of Court, rule 3.1324, subdivision (a), provides that a motion to amend must: (1) Include a serially numbered copy of the proposed amended pleading; (2) State what allegations in the previous pleading are proposed to be deleted, if any, and where, by page, paragraph, and line number, the deleted allegations are located; and (3) State what allegations are proposed to be added to the previous pleading, if any, and where, by page, paragraph, and line number, the additional allegations are located.